

		13.) There is no allegation that any money was transferred to Moving Defendants. There is also no allegation showing that Moving Defendants are indebted to Plaintiff, or that Plaintiff provided any form of consideration to Moving Defendants. The demurrer as to the third and fourth causes of action is SUSTAINED with 20 days leave to amend. <u>Motion to Strike</u> Defendants Quan Nguyen and Johanne Tsui's (together, "Moving Defendants") motion to strike portions of Plaintiff Fanzhou Luo's Complaint is DENIED without prejudice. Moving Defendants did not comply with CRC 3.1322: "A notice of motion to strike a portion of a pleading must quote in full the portions sought to be stricken except where the motion is to strike an entire paragraph, cause of action, count, or defense. Specifications in a notice must be numbered consecutively." Accordingly, the Court is unable to ascertain exactly what Moving Defendants seek to strike from the Complaint. Moving Parties to give notice.
111	O'Kane v. Radovich, 2022-01276312	MOTIONS TO BE RELIEVED AS COUNSEL – GRANTED AS TO TWO PARTIES, MOOT AS TO THE THIRD PARTY The unopposed motions of attorney W. Michael Hensley of FBT Gibbons LLP to be relieved as counsel for (1) Defendant R&R Holdings, I.B., LLC, a Nevada limited liability company, and (2) Defendant Kevin J. Prendiville are GRANTED. Service on the clients and on all other parties who have appeared in the case was proper and all required forms containing the requisite information were filed pursuant to California Rules of Court, rule 3.1362.

		Importantly, a corporation must be represented in court by an attorney. As such, Defendant R&R Holdings, I.B., LLC, a Nevada limited liability company is ORDERED to obtain new counsel within a reasonable time. (CLD Constr., Inc. v. City of San Ramon (2004) 120 Cal.App.4th 1141, 1150 [“[T]he court retains authority to dismiss an action if an unrepresented corporation does not obtain counsel within reasonable time.”].) The order will take effect once moving attorney files proof of service of the signed order (MC-053) on the clients. Moving attorney shall also give the clients notice of the currently scheduled hearing dates and trial date. There is also a motion to be relieved as counsel for Defendant Gorton Vallely. A substitution of attorney for this defendant was filed on 04/10/2026. Therefore, that motion is moot. Moving attorney to give notice.
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